

25STCV00889 25STCV00889

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Case Number: 25STCV00889 Hearing Date: August 11, 2026 Dept: 224

Milnes v. Oronoz

TENTATIVE RULING

The motion of Defendant Law Offices of Scott Warmuth, APC to quash service of summons is GRANTED. Service of the summons and First Amended Complaint on Defendant Law Offices of Scott Warmuth, APC, as reflected in the Proof of Electronic Service filed May 12, 2026, is QUASHED.

ANALYSIS

Introduction

On January 14, 2025, Plaintiff Heather Milnes, in pro per, filed this action against Defendants.

On March 17, 2026, Plaintiff filed a First Amended Complaint, which names Law Offices of Scott Warmuth, APC as Doe 1.

On June 1, 2026, Defendant Law Offices of Scott Warmuth, APC filed the instant Motion to Quash Service of Summons.

No opposition has been filed.

Legal Standard

"A defendant . . . may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her" (Code Civ. Proc., § 418.10, subd. (a).) "[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.]" (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1444.) "[The filing of a proof of service creates a rebuttable presumption that the service was proper" but only if it "complies with the statutory requirements regarding such proofs." (Id. at pp. 1441-1442.) When a defendant moves to quash service of the summons and complaint, the plaintiff has "the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service." (Coulston v. Cooper (1966) 245 Cal.App.2d 866, 868.)

Motion to Quash

Law Offices of Scott Warmuth, APC ("Warmuth"), a professional corporation named as Doe 1, specially appears to move to quash service of summons under Code of Civil Procedure section 418.10(a)(1).

The Proof of Electronic Service filed May 12, 2026 shows that the summons and First Amended Complaint were transmitted to an email address on April 29, 2026.

Email is not among the methods authorized for service of a summons. (Code Civ. Proc., §§ 415.10-415.50.) Section 1010.6 and rule 2.251 govern service of documents after a party has appeared or consented; they do not authorize electronic service of a summons. No general appearance appears in the record as to Defendant Law Offices of Scott Warmuth, APC. Nor has Warmuth agreed to accept electronic service.

Because the FAC made substantive changes, it superseded the original Complaint and had to be served in the manner provided for service of summons on a defendant who had not appeared. (State Comp. Ins. Fund v. Superior Court (2010) 184 Cal.App.4th 1124, 1130-1131; Code Civ. Proc., § 471.5(a); Engebretson & Co. v. Harrison (1981) 125 Cal.App.3d 436, 442-444).

Here, because the only service attempted was by email – a method not authorized for service of summons and not available here absent appearance or consent – the summons and FAC were never validly served on Defendant Warmuth, the court has acquired no personal jurisdiction over it, and the service must be quashed.

Conclusion

The motion of Defendant Law Offices of Scott Warmuth, APC to quash service of summons is GRANTED. Service of the summons and First Amended Complaint on Defendant Law Offices of Scott Warmuth, APC, as reflected in the Proof of Electronic Service filed May 12, 2026, is QUASHED.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.